

BUTTS v FCA US, LLC, et al

25CV47877

DEFENDANTS' MOTION TO COMPEL DISCLOSURES

This is a lemon law matter brought by Plaintiff Alan Butts ("Plaintiff") against FCA US, LLC ("FCA") and Stoneridge Chrysler Jeep Dodge ("Stoneridge") (collectively "Defendants.") Now before the Court is Defendants' motion to compel initial mandatory disclosures.

I. Background

Plaintiff purchased a 2022 Ram 3500 vehicle on July 21, 2022, for a total sales price of \$117,829.44. Plaintiff filed the Complaint in this action on February 11, 2025. FCA US, LLC filed its Answer on May 5, 2025.

Pursuant to California Code of Civil Procedure section 871.26, subdivision (f), Plaintiff was required to provide all mandatory initial disclosures within 60 days of the filing of an Answer or other responsive pleading. Plaintiff apparently did not provide some of the mandatory disclosures. Plaintiff has not filed any opposition.

II. Legal Standard

Code Civil Procedure section 871.26 provides for expedited discovery procedures in lemon law actions. Specifically, section 871.26(f)(1)-(11) and (g)(1)-(11) provide for the production of specific documents within 60 days of the filing of the responsive pleading.

Code Civil Procedure section 871.26(j)(1) provides, in pertinent part, the following:

Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:(1) [a] one-thousand five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney. . . paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

There is no meet and confer requirement set forth in Code Civil Procedure section 871.26. (*Beltran v. FCA US LLC*, 2025 Cal.Super.LEXIS 79237.)

III. Discussion

FCA filed its answer on May 5, 2025, which required Plaintiff to produce the mandatory documents by July 4, 2025, pursuant to CCP § 871.26.

Defendants assert that Plaintiff did not provide all disclosures and seeks an order requiring Plaintiff to disclose the missing information – specifically, responses to subsections f(1)-(7) and (g)(1)-(9). (It is unclear whether Plaintiff produced responses to the other portions of subsection (f) or not).

Plaintiff has not filed any opposition or provided any explanation for the failure to provide the mandatory disclosures. Accordingly, the Motion to Compel is **GRANTED**.

IV. Sanctions

Defendants request mandatory pursuant to Code Civil Procedure section 871.26(j)(1).

Accordingly, Plaintiff is ordered to pay sanctions in the amount of \$1,500.00 within fifteen (15) days of this Order.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted proposed Order.

SHERLOCK, et al v McRAY, et al

25CV48246

DEFENDANTS' DEMURRER AND MOTION TO STRIKE

This matter arises out of a dispute over the lease of residential real property brought by Joseph and Scarlett Sherlock ("Plaintiffs") against Scott and Mae McRay (collectively "Defendants.")

Now before the Court are a demurrer and motion to strike portions of the First Amended Complaint ("FAC") filed by Defendants. The motions are opposed.

I. FACTS AND PROCEDURAL HISTORY

On April 1, 2025, Plaintiffs signed a lease ("Lease") for real property located at 2295 Marti Drive, Arnold, California 95223 ("Property") (FAC ¶¶ 1, 14.) At the time of entering into the Lease, Scarlett Sherlock was "very pregnant" which was known to Defendants. (*Id.* ¶ 13.) On April 10, 2025, Plaintiffs gave Defendants an extensive list of issues with the Property, expecting Defendants would remedy the problems. (*Id.* ¶ 14.) Defendants responded by admitting they knew the property was in a state of disrepair at the time of lease, stating in an email dated April 11, 2025, "Wow, thank you for the detailed walk-thru. Some of the items we knew about and the others are new to us." (*Id.* ¶ 15.)

Upon moving into the Property, Plaintiffs discovered that many problems remained. After moving in, Plaintiffs discovered new problems, including: (1) severe bat infestation, (2) improperly maintained stairs, (3) improper weather protection, (4) electrical issues, (5) malfunctioning exterior door locks, (6) malfunctioning kitchen appliances, (7) water intrusion, (8) HVAC issues, (9) plumbing issues, (10) malfunctioning heating, (11) sagging floors, and (12) improper trash facilities ("Defective Conditions.") (FAC ¶ 16.) Plaintiffs repeatedly notified Defendants of these problems. (*Ibid.*)

In Plaintiffs' mind, one of the worst problems, particularly due to Scarlett's pregnancy, was the bat infestation. On June 1, 2025, after discovering bat guano, Plaintiffs learned that the Property was infested with bats. (FAC ¶ 30.) Prior tenants confirmed that the bats had been a problem for them, and the Defendants admitted that bats had been a problem for 8 to 9 years. (*Ibid.*) Because there were known bats in the house, and bat bites can often be invisible to the eye, Plaintiffs were required to undergo Rabies Post-exposure prophylaxis ("PEP.") (*Ibid.*) Because Scarlett was 41 weeks pregnant, she was considered at "high risk" to receive the PEP treatment. (*Ibid.*) The PEP treatment required injections in every limb of Plaintiffs' bodies. (*Ibid.*)